

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	16CV301771	CSNK Working Capital Finance Corp. vs Define Mobility LP et al	The Court did not locate a proof of service showing Rashinder Singh aka Rashminder Singh aka Rashi Singh was served with notice of this debtor's examination. If judge creditor was served, the judgment creditor is ordered to file the proof of service. If service was not effected, this matter will be taken off calendar.
9:01 2	16CV301771	CSNK Working Capital Finance Corp. vs Define Mobility LP et al	The Court did not locate a proof of service showing Jasit Singh aka Jesse Singh aka Jas Singh was served with notice of this debtor's examination. If judge creditor was served, the judgment creditor is ordered to file the proof of service. If service was not effected, this matter will be taken off calendar.
9:01 3	20CV368411	P.W. STEPHENS ENVIRONMENTAL, INC. vs RANDALL SPRINGER	The parties are ordered to appear for the examination of RANDALL SPRINGER, who was personally served with notice of this examination on July 22, 2025.
9:00 1-2	24CV453156	JAVIER LEYVA et al vs GENERAL MOTORS, LLC.	First amended complaint filed; demurrer and motion to strike off calendar.
9:00 3	23CV414972	David Rubin vs BluSky Restoration Contractors, LLC et al	Pursuant to the joint request of the parties, this motion is continued to October 28, 2025 at 9 a.m. in Department 6.
9:00 4-5	23CV423808	ARCHON DESIGN SOLUTIONS, INC. vs GLOBAL SEMICONDUCTOR ALLIANCE	Please see line 4 for tentative rulings regarding the court's OSC regarding consolidation, Plaintiff's motion to compel, and Defendant's motion to compel. Court will prepare the formal order. The parties are ordered to appear with a proposed new trial date for the consolidated action. The Court will set the earliest trial date the parties agree to for the consolidated actions, as the January 12, 2026 trial date is no longer tenable given Plaintiff's new action.
9:00 6	24CV443308	WELLS FARGO BANK, N.A. vs Annie Kim	This matter originally came on for hearing on June 26, 2025. At Plaintiff's request, the Court did not adopt its tentative ruling and instead continued the hearing to September 4, 2025 at 9 a.m. in department 6. There is no indication in the record that the case has been resolved. Accordingly, Plaintiff's motion to deem matters in requests for admission admitted is GRANTED. See line 6 for complete ruling. Court will prepare the formal order.
9:00 7	24CV443609	BERKSHIRE HATHAWAY HOMESTATE COMPANIES, vs NIKNAM NICKRAVESH et al	Defendants' motion to compel and for sanctions is DENIED. See line 7 for complete ruling. The Court will prepare the formal order.
9:00 8	24CV444162	TECH KY vs JESUS HERNANDEZ et al	Plaintiff's motion to compel responses to form interrogatories (set one) and for sanctions is GRANTED. See line 8 for complete ruling. Court will prepare formal order.
9:00 9	24CV453728	ANTHONY FLAMINIANO vs MERCEDES-BENZ USA, LLC et al	This matter is continued to October 9, 2025 at 9 a.m. in Department 6 to be heard with four other pending motions to compel.

9:00 <u>10</u>	24CV454785	American Express National Bank vs Myrna Milano	Defendant's motion to set aside default and default judgment is DENIED. See line 10 for complete ruling. Court will prepare the formal order. The parties are ordered to appear at the hearing for argument.
9:00 <u>11</u>	24CV454855	DISH WIRELESS L.L.C. vs ADVANCED WIRELESS & LOGISTICS	DISH Wireless LLC's motion for attorneys' fees is GRANTED. See line 11 for complete ruling. Court will prepare formal order.
9:00 <u>12</u>	25CV460115	Peggy Davis vs CIRBY HOLDINGS, LLC.	Defendant's petition to compel arbitration is GRANTED. See line 12 for complete ruling. Court will prepare formal order. The November 26, 2025 case management conference is VACATED. A status conference regarding the arbitration is set for March 26, 2026 at 10:00 a.m. in Department 6.

Line 4

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

ARCHON DESIGN SOLUTIONS, INC.,

Plaintiff,

v.

GLOBAL SEMICONDUCTOR ALLIANCE, J.
SHELTON ASSOCIATES, INC., and JODI
SHELTON

Defendants.

Case No. 23CV423808

Related Case No. 25CV470109

**ORDER REGARDING CONSOLIDATION
AND MOTIONS TO COMPEL**

GLOBAL SEMICONDUCTOR ALLIANCE,

Cross-Complainant,

v.

ARCHON DESIGN SOLUTIONS, INC.,
ATHANASSIOS "TOM" KATSIIOULAS, and DOES
1-20.

Cross-Defendants.

The Court's order to appear and show cause why Case Nos. 23CV423808 and 25CV470109 should not be consolidated, Plaintiff's motion to compel production of documents (sets 4 and 5), and Defendant's motion to compel production of ESI in either native or another reasonably usable format came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025.

I. Consolidation of Case No. 25CV470109 with Case No. 23CV423808

Code of Civil Procedure Section 1048(a) provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." "A consolidation of actions does not affect the rights of the parties. The purpose of consolidation is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions." (*Wouldridge v. Burns* (1968) 265 Cal. App. 2d 82, 86.) "Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only, where the two actions remain otherwise separate; and a complete consolidation or consolidation for all purposes, where the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment." (*Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147.) "Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only." (*Id.* at 1149.)

Plaintiff insists that Case Nos. 23CV423808 and 25CV470109 are so different that they are not even related. California Rule of Court, Rule 3.300 provides:

(a) Definition of "related case" A pending civil case is related to another pending civil case, or to a civil case that was dismissed with or without prejudice, or to a civil case that was disposed of by judgment, if the cases:

- (1) Involve the same parties and are based on the same or similar claims;
- (2) Arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical